INTERCERT®

BUILDING TRUST, INSPIRING CONFIDENCE

BUSINESS PROPOSAL

CERTIFICATION DIVISION

Your One Stop Solution For Audits, Certifications, Training, And Assessments

Proposal for [……] Audit and Assessment Services

SUBMITTED TO: [……..]

Proposal No.:

Dated: [dd/mm/yyyy]

Submitted By: INTERCERT

Email: info@intercert.com

INTERCERT INC

2001 Timberloch Place, The Woodlands, TX
77380, United States
Contact No.: +1 (281) 720 3261

www.intercert.com

Proposal No.: **Dated: [dd/mm/yyyy]**

To,
[……..]

Sub: Proposal for [……] Audit and Assessment

INTERCERT is a multinational auditing company headquartered in **Texas, United States** operating **at 28+ countries**. Founded in 2009 with a commitment to building a secure and sustainable world through customer-centric services.

Our Accreditations and Services includes:

- Accredited from leading America's accreditation board **(SCC, Canada & UAF, United States)** under **IAF for ISO** Certification Services & accredited from **Exemplar Global** for **ISO Lead Auditor** / Implementation Training.
- United States Registered **CPA firm (INTERCERT CPA LLC)** in the State of Montana, vide License Number **PAC-FIRM-LIC-51611** for SOC2 / SOC1 Services.
- Accredited from Cloud Security Alliance, United States for **CSA STAR Certification** services.
- Registered Practitioner Organization (RPO) from **Cyber AB, United States** for **CMMC** Certification Services with onboard C3PAO's.
- **PCI DSS QSA Company** (Group Company) for PCI DSS Certification.
- Data Protection **GDPR, HIPAA, PDPA &** Cyber Security Compliances for **NIST, HITRUST, FEDRAMP, DORA, NIS2, Cyber Essential** attestation by qualified CISA's.
- **VAPT** & **Security Assessment** Services by a qualified team of CISA's / CEH / Cyber Experts.

With extensive experience across diverse industries and business sectors, INTERCERT experienced team of 150+ Assessors delivers assessment services globally in compliance with ISO 17021 requirements. Our team excels at adapting to changing business needs, ensuring that our service delivery consistently meets and exceeds client expectations.

Further to your details provided, we are pleased to submit herewith our proposal.

We look forward to the opportunity to serve you.

Thanking you,

Prashant K
Prashantk@intercert.com

Section A – Scoping & Project Deliverables

A.1 Company Details

Company Name	
Head Office Address	
Location Addresses under Certification	
Number of Employees	
Scope of Certification	
Scheme / Standards	
Accreditation	UAF

A.2 Activities & Deliverables

Stage 1 Audit	• Stage 1 documentation review Audit Report
Stage 2 Audit	• Stage 2 Certification Audit report • Issuance of Certificate
1st Annual Surveillance Audit	• 1st Surveillance audit report and recommendation for continuation of certificate
2nd Annual Surveillance Audit	• 2nd Surveillance audit report and recommendation for continuation of certificate

A.3 Timelines

The estimated timelines mentioned below depends upon client team support and providing the required information to audit team.

Stage 1 Audit	2 Weeks
Stage 2 Audit	2-3 Weeks (Within 3 months of Stage 1 Audit)
1st Annual Surveillance Audit	2 Weeks (Within 11 months of Stage 2 Audit
2nd Annual Surveillance Audit	2 Weeks (Within 22 months of Stage 2 Audit

Section B – Project Fee

Sr. No.	Service Details	Fees in USD
1	Registration Charges	USD
2	Stage -1&2 Audit (Audit Planning, Audit Performance & Audit Reporting)	USD
Total Fee for Initial Certification (1st Year)		**USD**
3	1st Annual Surveillance Audit (2nd Year)	USD
4	2nd Annual Surveillance Audit (3rd Year)	USD
Total Fee for 03 Years Certification Cycle		**USD**

Efforts includes Man-days for Offsite Activities i.e. Audit Planning, Audit Performance Management & Audit Reporting

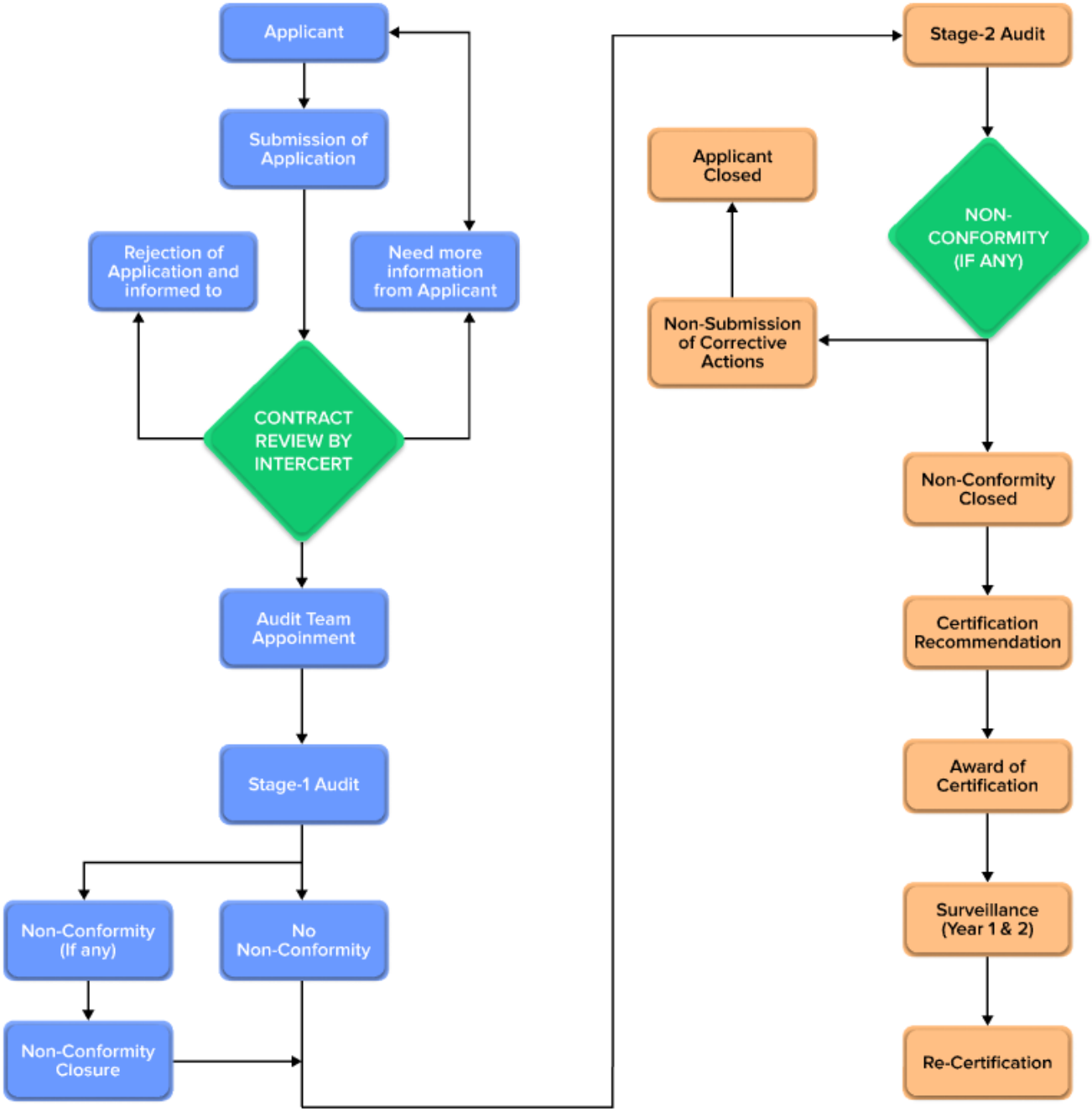
Section C– Terms & Conditions

C.1 Commercial Terms & Conditions

- The validity of Proposal is 30 days and INTERCERT reserve the right of acceptance beyond the validity period.
  - Payment Terms: Certification Fee-: The 50% Payment to be done upon accepting the Business Proposal and balance Payment to be paid before issuing the final certificate/Report.
  - SA 1: 100% fee shall be paid once audit is Scheduled.
  - SA 2: 100% fee shall be paid once audit is Scheduled.
- The final deliverables will always be issued on full settlement of invoices.
- All fees once paid are non-refundable in any circumstances.
- The assessment may be conducted (offsite / onsite) as per applicable rules, guidelines and Country / State specific guidelines travel advisories.
- The Travel and Boarding for assessment team (if required) shall be arranged by Client otherwise will be billed as per actuals to client.
- The above-mentioned fee is inclusive of all Offsite activities like Contract Review, Assessment Planning, Report Preparation, Reviews and issuance of certification / attestation tabulated based on information's as per client application & mentioned under scoping section, Any deviation may lead to revision in certification fee / proposal.

C.2 General Terms & Conditions

C.2.1 Certification Roadmap



C.2.2 General Terms of Certifications

1.	GENERAL
1.1	These specific terms and conditions of service (the "Specific Conditions of Certification Services") are governed by the General Conditions for Certification Services of INTERCERT.
1.2	INTERCERT offers certification services ("Services") covering audit and certification against an appropriate recognized specification or part thereof to any person, firm, company, association, trust or government agency or authority that apply for Services ("Client").
1.3	To achieve and preserve certification, INTERCERT Clients are required to develop and maintain their management systems in accordance with said specifications, allowing unconditional access to INTERCERT to audit or otherwise verify these management systems against said specifications.
1.4	The certification awarded by INTERCERT covers only those services or products manufactured and/or supplied under the scope of the Client's management systems certified by INTERCERT. For certain certification schemes, amplification of the contents of this document is required. This is provided separately for the scheme concerned. Clients remain solely liable for any defect in their products and shall defend, protect and indemnify INTERCERT from any and all defects, claims or liability arising from said products.
1.5	The issued certification does not exempt Clients from their legal obligations in respect of the services or products in the scope of their management systems.
1.6	Capitalized terms not otherwise defined herein shall have the meanings given to such terms by the ''Conformity Assessment'' vocabulary as stated in the ISO 17000 standards.
2.	REQUESTS FOR CERTIFICATION:
2.1	Single-Site Offer: offer issued by INTERCERT to a Client for the Services for one site and/or location. Multi-Site Offer: offer issued by INTERCERT to a Client for the Services for two or more sites and/or locations.
2.2	The Client will be asked to supply detailed information about the size and scope of their operations subject to INTERCERT Services.
2.3	Where a Multi-Site offer is made, INTERCERT Multi-Site offer is based on the information supplied by the Client and includes the multi-site criteria of the accreditation rules according to IAF MD1 latest edition. Where any subsequent audit information supplied by the Client is found not to be accurate, INTERCERT reserves the right to amend and correct its offer and/or the Agreement accordingly to ensure the rules are complied with.
3.	**THE INITIAL CERTIFICATION PROCESS:** The details of the Services to be provided must be agreed between the Client and INTERCERT.
3.1	**STAGE 1 AUDIT:** INTERCERT will undertake a readiness review to determine the preparedness of Stage 2 of the audit (understanding the requirements, collecting information of the scope of the management system, processes and location of the Client, reviewing the allocation of resources for Stage 2, planning for Stage 2, evaluating the internal audit systems).
3.2	**STAGE 2 AUDIT:** The Stage 2 audit shall be conducted within 60 days from the last date of the Stage 1 audit. INTERCERT will provide an audit programme prior to the commencement of the audit. The INTERCERT audit team will meet with the Client's management to discuss the details of the audit process and consider and opportunities for improvement if and when they are identified during the audit. The INTERCERT audit team will prepare and present to the Client's management a report of the audit, which will include the audit findings and the scope of certification and will seek agreement, where necessary, on the nature of any corrective actions to be taken.
3.3	**CHANGES TO STAGES 1 & 2** If as result of Stage 1 INTERCERT determines that the Stage 2 arrangements (i.e. Changes in the scope, man-days, auditors) If after Stage 1 INTERCERT determines that client is not ready, Stage 1 can be repeated until it produces satisfactory result to proceed with Stage 2. When Stages 1 & 2 are planned back-to-back INTERCERT has the right to postpone Stage 2 at the expenses of the Client if the results of Stage 1 are not satisfactory to proceed with Stage 2.

3.4	**NONCONFORMITY:** INTERCERT auditors will only identify nonconformities that help Clients improve their management systems. When Major Non-Conformity or Major changes occur, INTERCERT undertakes a "special follow up visit", which is charged at INTERCERT current rates. All fees to review Client's proposed actions to close Non-Conformities are charged on a time basis.
3.5	**ISSUANCE OF CERTIFICATION:** INTERCERT will issue to the Client Certification and Reports if and when all corrective actions agreed between the Client and the audit team have been completed. Certificate will detail the standard(s)/specification(s) to which the Client has been found to be in conformance at the time of audit and the scope of the management system.
4.	**SCOPE AND TERMS OF PAYMENT**
4.1	The scope of certification shall be as indicated in the Client's Application and INTERCERT Certification Offer.
4.2	Certification fee agreed on the part - 1 shall be paid prior to the audit and the Client shall pay all the expenses that are reasonably raised in relation to the audit.
4.3	INTERCERT shall invoice Clients on delivery of the Services. Certificate of Approval and Reports cannot be released until full payment has been received by INTERCERT
4.4	The Client shall pay each valid invoice submitted to it by INTERCERT, in full and in cleared funds, within thirty (30) days of the date of the invoice.
4.5	If the Client fails to pay INTERCERT on the due date, INTERCERT may charge interest on such sum from the due date for payment at the monthly rate of 1.5%, accruing on a daily basis and being compounded monthly until payment is made, whether before or after any judgment; and suspend all Services until payment has been made in full. The fees and any additional charges are exclusive of all applicable taxes.
4.6	If the Client postpones the audit service by a thirty (30) working days' notice, INTERCERT reserves the right to charge the full man-day fee of the audit. This sum will not be discounted from the audit fee ultimately charged when the rescheduled audit is carried out.
4.7	If the client cancels this Agreement, the client shall pay all the outstanding invoices. In addition, if the Client cancels the Agreement with less than three (3) months' notice prior to the next due audit date, then the Client shall be liable for the full cost of the audit, including all audit man-day and administrative fees.
4.8	All fees are exclusive of travel and expenses and will be charged as pre-agreed at a fixed rate or at cost.
4.9	The invoice shall include as appropriate, but not restricted to, man-days (off- and on-site), Reports, Certification, Non-conformity Closure, Certificate of Approval and Accreditation Fees as well as Expense Costs.
4.10	Any service rendered beyond those set out will be charged at INTERCERT current rates.
4.11	If the client wishes to cancel the contract before Initial, Main audit, administrative fees equivalent to 20% of the total contract value will be charged.
4.12	If the services are not opted for within 2 years period from the date of signing of the contract, the entire advance amount will be forfeited.
4.3	This agreement shall come into force when signed by both parties and shall run for a period of at least three years. It shall be extended in each case for a further period of three years on the client placing an appropriate order. The contract can be terminated by either parties giving a minimum of one-month advance notice.
5.	**CERTIFICATION MAINTENENACE**
5.1	**SURVEILLANCE:** INTERCERT operates a surveillance audit programme to record whether the Client's certification is found to be maintained. The programme is ongoing and is agreed with the Client in the Agreement. Once INTERCERT has agreed the dates, the Client should make all necessary arrangement to maintain the agreed date. The date of the first surveillance audit following initial certification shall not be more than twelve (12) months from the Certification decision day. Non-performance of surveillance visits at interval greater than 365 days results in certificate losing its validity. It may be noted that surveillances will be conducted only when core processes, affecting the certification scope, are carried out, and that it would be the clients' responsibility to inform INTERCERT in case they are not able to run any of the core processes on the days of the audit.

5.2	**RE-CERTIFICATION:** Every three (3) years INTERCERT will review the Client's certification status and, subject to the satisfactory results from the surveillance audits and/or the re-certification audit (including all corrective actions which have been agreed between the Client and the audit team are completed), INTERCERT will re-issue the Client's certification. Validity of the certificate cannot be extended beyond the expiry date indicated on the certificate. In order to preserve the continuity of the certification (i.e. to maintain the original approval date of certification), the recertification/reassessment audit must be completed within the validity period of the current certificate (i.e. before expiry of the current Certificate), including the time required and foreseen for completing the corrective actions on the non-conformities if found any during the re-certification audit & the recertification decision. In lieu of the same, it is recommended to complete the recertification audit at least 90-120 days prior to the current certificate validity getting over. Once completed, recertification will be reconfirmed. Notwithstanding the provisions laid down under Sections 3, 4, & 5 above, the client shall at all points of time ensure compliance with the certification requirements and any liability on account of non-conforming processes shall rest with the certified organization.
6.	**CHANGES TO CERTIFICATION/CERTIFICATION OF MULTIPLE SITES**
6.1	The Client is requested to inform INTERCERT promptly of any significant changes to its product(s) or services that may impact the certified management system(s) or any other circumstances, which may affect the validity of its certification. Change of site & contact details, changes in SOA, Changes in Food Category, additional sites, change of process, change of organizational status or ownership & key management staff, change of scope, change of number of employees, etc. are considered as changes which may affect the validity of the certification. INTERCERT will then take the appropriate action, such as conducting a special visit and/or changing the certification. Special visits can be conducted as well to investigate complaints received about the Client. Any changes to the accreditation requirements and certification procedures, processes, requirements, etc. shall be communicated by INTERCERT, as and when applicable as per the transition guidelines (if applicable), through various means like newsletters, mails, websites, customer portals, direct interactions, etc. The legally enforceable arrangements shall also require that the certified client informs the Certification Body, without delay, of the occurrence of a serious incident or breach of regulation necessitating the involvement of the competent regulatory authority.
7.	**USE OF MARK / LOGO/SYMBOL** The Client shall use the INTERCERT and Accreditation Body marks in accordance with the instructions for use that INTERCERT provides. There shall be no ambiguity, in the mark or accompanying text, as to what has been certified. INTERCERT mark shall not be used on a product or product packaging seen by the final consumer or in any other way that may be interpreted as denoting product conformity. Client shall ensure:
7.1	Conformance to the requirements of the INTERCERT when making reference to its certification
7.2	Current status of certification in communication media such as the internet, brochures or advertising, or other.
7.3	Does not make or permit any misleading statement regarding its certification.
7.4	Does not use or permit the use of a certification document or any part thereof in a misleading manner.
7.5	Upon withdrawal of its certification, discontinues its use of all advertising matter that contains a reference to certification, as directed by INTERCERT.
7.6	Amends all advertising matter when the scope of certification has been reduced / withdrawn.
7.7	Does not allow reference to its management system certification to be used in such a way as to imply that the INTERCERT certifies a product (including service) or process.
7.8	Does not imply that the certification applies to activities and sites that are outside the scope of certification.
7.9	Does not use its certification in such a manner that would bring the INTERCERT and/or certification system into disrepute and lose public trust.

7.10	Client is required to adhere with Intercert logo guidelines, failure to do so will invite action. Since INTERCERT is the sole proprietor of certification logo/symbol, the Client shall use the relevant logo/symbol as granted by INTERCERT. In any case, the logo/symbol shall not be used in such a manner that it implies product conformity.
8.	**ACCESS TO CERTIFICATION BODY AND ACCREDITATION BODY PERSONNEL:**
8.1	The Client shall make all necessary arrangements for the conduct of the audits, including provision for examining documentation and the access to all processes and areas, records and personnel for the purposes of initial certification, surveillance, recertification and resolution of complaints. The Client shall allow access to the INTERCERT auditors (including Observers, Trainee Auditors & Technical Experts, as applicable) as well as Accreditation Body or their representatives to the auditable site for: a. Any part of the audit during certification cycle / Agreement b. Witnessing the INTERCERT audit team c. Validation visits from INTERCERT / Accreditation Body These visits required for above 8. b and 8.c will not lead to bearing of any additional costs by the client.
9.	**APPEALS, DISPUTES AND COMPLAINTS**
9.1	Should the Client wish to appeal against or dispute any decision of INTERCERT, it should do so in accordance with the INTERCERT appeals procedure, available on INTERCERT website or upon request. Should a complaint arise about INTERCERT, such complaint shall in the first instance be made to local INTERCERT office or send a mail to info@intercert.com
10.	**CONFIDENTIALITY / PUBLICLY ACCESSIBLE INFORMATION**
10.1	INTERCERT shall ensure that all the information regarding the Client obtained from the communication with the Client is treated as strictly confidential by all the staff and agents of INTERCERT except that this information becomes necessary during the audit.
10.2	INTERCERT shall ensure that all the staff and agents comply with the conditions of the contract and confidentiality statement agreed by the Client.
10.3	INTERCERT may reveal the Client's information related to certification activities without prior permission to the Accreditation body or other governmental bodies by the law.
10.4	INTERCERT may publish Client information (Client's name, location, certified Standard, certification status, etc.) on the INTERCERT website to the extent that the Confidentiality is not damaged. Where it becomes necessary for INTERCERT to reveal more information than indicated herewith, it shall not be done without prior permission of the Client.
10.5	INTERCERT will place the following information in the public domain – Client Name, Applicable Standards, scope of certification, certificate validity including status.
10.6	INTERCERT may use logo of certified client in promotional materials (website, brochures etc.)
11.	**SUSPENSION AND WITHDRAWAL** INTERCERT reserves the right to suspend, withdraw, reduce, extend or cancel the Certificate of Approval at any time in case of
11.1	Failure to conduct Surveillance Audits within the stipulated time limits.
11.2	Failure to close the Non-Conformities within the time limits (90 days).
11.3	Failure to compliance with regulatory requirements.
11.4	Failure to demonstrate part of activities under the scope of certification.

11.5	Adverse feedback in the public domain.
11.6	Non-Payment of INTERCERT dues.
11.7	Misrepresentation of INTERCERT Mark. INTERCERT shall give a three (3) months written notice or a shorter notice as the situation may require depending upon the information available. If such actions are deemed necessary, the Client will be fully briefed, and will be given every possible opportunity to take corrective action before a final decision is taken on what action INTERCERT should take. INTERCERT reserves the right to publish any such facts (incl. those under purview of ISO 17021) in case any such action has been taken.
12.	**RIGHTS AND OBLIGATIONS**
12.1	The Client shall be treated impartially and objectively during the application process.
12.2	The Client shall be assessed impartially during initial certification, surveillance and recertification audits.
12.3	The Client shall be assessed in a professional manner.
12.4	The Client shall be assessed with a reasonable and fair price.
12.5	INTERCERT shall secure qualified and appropriate auditor resources for the certification of the Client.
12.6	INTERCERT shall conduct certification activities in an impartial and unbiased manner.
12.7	The Client shall receive services in a prompt and accurate manner.
12.8	INTERCERT shall conduct certification activities only within the scope of certification.
12.9	During the closing meeting, auditors shall explain to the Client any identified nonconformity in full detail and shall respond to any questions in a sincere manner.
12.10	Auditors shall not conduct any kind of consultation during any meetings.
12.11	The Client shall retain the right to request a detailed explanation for any identified nonconformity and to raise an appeal against matters, which compromise its own interests.
12.12	The Client shall retain the right to get answers for all questions within the criteria related to audit process and its products.
12.13	INTERCERT shall assess the Client's management system(s) in compliance with the requirements applied to audit operation and the scope of the management system.
12.14	The Client shall permit the auditors to access to all the information related to the audit in order to ensure effective audit process.
12.15	The Client shall inform the auditors of all the facilities, products, manufacturing processes and management system in an accurate manner.
12.16	The Client shall ensure that the auditors can conduct the audit effectively and shall pay all the expenses reasonably raised during the audit.
12.17	The Client shall take actions against any nonconformity identified by the auditors in a prompt and effective.
12.18	Both Parties shall comply with and implement all the contractual matters agreed arrangements.
12.19	The Client may use the certification logo/symbol. However, the Client shall comply with the Rules and Procedures.
12.20	INTERCERT shall inform the Client of any changes to the requirements of the Standard and shall verify that the Client is in conformity to the changed requirements.

12.21	The Client shall inform INTERCERT, without delay, of matters that may affect the capability of the certified System (e.g. changes relating to the legal, commercial, organizational status or ownership, organization and management, contact address and sites, scope of operations under the certified System and major changes to the System and processes).
12.22	The Client shall not refer to its certification in such a manner that it is linked with or related to the approval of product or product conformity.
12.23	The Client shall operate its System in accordance with the defined arrangements and the requirements of the Standard. This shall include the capability to fulfil the requirements of the Client's policy and objectives and to demonstrate that its System is effective as well as the operation of its System.
12.24	The auditors shall retain the right to access to the records of complaints received from the Client's customers during initial certification, surveillance and recertification audits.
12.25	The Client shall have the responsibility and obligation to conduct complete internal audits and management reviews at least once prior to the audit.
12.26	INTERCERT shall review, investigate, analyse and take actions against the following.
12.27	Appeals and complaints received from the Client's customers and responses to them.
12.28	Results of and response to the internal audits and management reviews.
12.29	Progress status of objectives related to continual improvement.
12.30	To the fullest extent permitted by law and except as expressly provided for in the Agreement, a person who is not a party to the Agreement shall not have any rights under or in connection with the Agreement.
12.31	This legally enforceable agreement shall be governed by the laws of US / India and subject to jurisdiction of respective Courts of the country/ies as applicable.

Submitted By:
INTERCERT

Name/Designation: Prashant K
Date: [dd/mm/yyyy]

Accepted By:

Name/Designation:
Date: